

Mississippi Statutory Form for Power of Attorney to Delegate Parental or Legal Custodian Powers

1. I certify that I am the parent or legal custodian of:

_____	_____
(Full Name of Minor Child)	(Date of Birth)
_____	_____
(Full Name of Minor Child)	(Date of Birth)
_____	_____
(Full Name of Minor Child)	(Date of Birth)

who is/are minor children.

2. I designate as the attorney-in-fact for each minor child named above:

(Full Name of Attorney-in-Fact)

(Street Address, City, State, and Zip Code of Attorney-in-Fact)

(Home Phone, Work Phone, and Cell Phone of Attorney-in-Fact)

as the attorney-in-fact of minor child/ren named above.

3. [Complete either Section 3(a) or 3(b)].

(a) I delegate to the attorney-in-fact all of my power and authority regarding the care, custody and property of each minor child named above, including, but not limited to, the right to enroll the child in school, inspect and obtain copies of education records and other records concerning the child, the right to attend school activities and other functions concerning the child, and the right to give or withhold any consent or waiver with respect to school activities, medical and dental treatment, and any other activity, function or treatment that may concern the child. This delegation shall not include the power or authority to consent to marriage or adoption of the child, the performance or inducement of an abortion on or for the child, or the termination of parental rights to the child.

OR

(b) I delegate to the attorney-in-fact the following specific powers and responsibilities (write in):

[If Section 3(b) is completed, Section 3(a) does not apply.]

This delegation shall not include the power or authority to consent to: marriage or adoption of the child, performing or inducing an abortion on or for the child, or the termination of parental rights to the child.

(c) The reason or reasons for this transfer of custody is as follows:

4. [Complete either 4(a) or 4(b)]

(a) This power of attorney is effective for a period not to exceed one (1) year, beginning _____, 20____, and ending _____, 20____, I reserve the right to revoke this authority at any time.

OR

(b) I am a serving parent as defined in Section 93-31-3, Mississippi Code of 1972. My active-duty service is scheduled to begin on _____, 20____, and is estimated to end on _____, 20____. I reserve the right to revoke this authority at any time. I acknowledge that in no event may this delegation of power last more than one (1) year or the term of my active duty plus thirty (30) days, whichever is longer.

By: _____
(Parent/Legal Custodian Signature)

5. I hereby accept my designation as attorney-in-fact for the minor child/children specified in this power of attorney.

(Attorney-in-Fact Signature)

**6. AFFIDAVIT OF FACILITATING AGENCY UNDER SECTION 93-31-3(1)(d),
Mississippi Code of 1972**

I, _____ of _____ (Agency),
do hereby certify that I have properly vetted the proposed designated attorney-in-
fact as required under Section 93-31-3(1)(d), Mississippi Code of 1972, and find
no criminal or child abuse or neglect history.

(Agency Representative Signature)

(Name of Facilitating Agency)

State of _____

County of _____

ACKNOWLEDGEMENT

Before me, the undersigned, a Notary Public, in and for said county and state on
this ____ day of _____, 20____, personally appeared

(Name of Facilitating Agency and Person Signing
as Facilitator), _____ (Name of Parent/Legal Custodian),
and _____ (Name of Attorney-in-Fact), known to me to be
the persons who executed this instrument and who acknowledged to me that each
executed the same as his or her free and voluntary act and deed for the uses and
purposes set forth in the instrument.

Witness my hand and official seal the day and year above written.

(Signature of Notarial Officer)

(Seal, if any)

(Title and Rank)

My commission expires: _____

7. If the custodial parent alleges that the noncustodial parent is absent, unknown, or that the location of the noncustodial parent is unknown, an affidavit must be completed and attached to the power of attorney. The following statutory form is sufficient:

AFFIDAVIT OF CUSTODIAL PARENT

State of _____

County of _____

I hereby certify that I am the custodial parent of the child(ren) who are the subject of the power of attorney to which this affidavit is attached. I further certify that the location of the noncustodial parent, _____, is unknown to me or that the identity of the father is unknown to me (Insert Here if the Father is Unknown) _____, or that the noncustodial parent is unavailable (State Here the Reason Unavailable): _____.

SO SWORN, this the ____ day of _____, 20____.

(Custodial Parent)

SWORN TO AND SUBSCRIBED BEFORE ME, the undersigned authority in and for the aforementioned jurisdiction, the within named person who first presented proof of identity.

THIS, the ____ day of _____, 20____.

(Signature of Notarial Officer)

(Seal, if any)

(Title and Rank)

My commission expires: _____